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March 3, 2026

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 1895

By: Reinhardt of the Senate

and

Moore of the House

An Act relating to schools; defining term; requiring public school districts to annually identify certain students beginning in certain school year; providing criteria for identification; requiring certain public school district boards of education to annually adopt certain resolution; providing for contents of resolution; requiring resolution to be considered during certain meeting; directing certain parents and legal guardians to be provided certain applications, instructions, and assistance; prohibiting a school district from taking certain actions if a student is unable to pay for a meal or accrues certain debt; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3-119.2 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. As used in this section, "community eligibility provision" means the federal provision created pursuant to 42 U.S.C., Section 1759a that allows school districts to choose to receive federal

1 special assistance payments for school meals in exchange for
2 providing free school meals to all students enrolled in all or
3 selected school sites within the school district.

4 B. Beginning with the 2026-2027 school year, each public school
5 district in this state shall annually identify the number of
6 students enrolled in the district who are directly certified to
7 receive free or reduced-price school breakfasts and lunches. For
8 the purposes of this section, "directly certified" means students
9 who:

10 1. Participate in Medicaid;

11 2. Participate in the Supplemental Nutrition Assistance Program
12 (SNAP);

13 3. Participate in the Food Distribution Program on Indian
14 Reservations (FDPIR);

15 4. Participate in Temporary Assistance for Needy Families
16 (TANF); or

17 5. Are homeless, transient, or in foster care.

18 C. Beginning with the 2026-2027 school year, the board of
19 education of a public school district in which all school sites are
20 eligible to receive the federal special assistance payments for all
21 reimbursable school breakfasts and lunches served pursuant to the
22 community eligibility provision shall annually adopt a resolution
23 indicating its degree of participation, if any, in the community
24 eligibility provision. If a school district is unable to

1 participate in the community eligibility provision because doing so
2 would cause financial hardship, the school district board of
3 education shall adopt a resolution reflecting such information. The
4 school district board of education shall consider the resolution
5 during the same meeting the school district budget is considered,
6 and the agenda for such meeting shall reflect the resolution to be
7 considered.

8 D. Each public school district shall ensure that parents and
9 legal guardians of students enrolled in the district who are
10 eligible for free and reduced-price meals receive the necessary
11 applications and instructions for participation. Upon request, a
12 school district shall provide assistance in completing the
13 applications.

14 E. If a student is unable to pay for a meal or accrues school
15 meal debt, the public school district in which the student is
16 enrolled shall not publicly identify or penalize the student in any
17 way including, but not limited to, denying a meal, serving an
18 alternative meal, discarding a meal after serving it to the student,
19 requiring chores or work in exchange for a meal, prohibiting the
20 student from participating in extracurricular activities, denying
21 the student from participating in graduation, withholding the
22 student's diploma, or refusing to fulfill the student's requests for
23 transcripts.

24 SECTION 2. This act shall become effective July 1, 2026.

1 SECTION 3. It being immediately necessary for the preservation
2 of the public peace, health, or safety, an emergency is hereby
3 declared to exist, by reason whereof this act shall take effect and
4 be in full force from and after its passage and approval.

5 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
6 March 3, 2026 - DO PASS AS AMENDED BY CS
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